

## 25SMCV03803 25SMCV03803

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-21

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Case Number: 25SMCV03803 Hearing Date: July 21, 2026 Dept: P

Tentative

Ruling

Anthony

Jones v. Velocity Commercial Capital, LLC, et al., Case No. 25SMCV03803

Plaintiff's

Motion Re: Declare Foreclosure Sale Void

Hearing

Date: July 21, 2026

Anthony

Jones, in pro per, sues Velocity Commercial Capital, LLC; U.S. Bank Trust company, N.A.; McCalla Raymer Leibert Pierce, LLC; Nabeel Zuberi; Vivime, LLC; and Gaymond Lee for damages arising out of the alleged wrongful foreclosure of a property at 2704 Strong's Drive, Venice, CA 90210.

On March

9, 2026, Jones filed this motion to: (1) Declare the foreclosure sale void; (2) cancel the Trustee's deed upon sale recorded against the property; and (3) preserve the status quo pending adjudication of Jones' wrongful foreclosure claims.

On July 7,

2026, Defendant Vivime, LLC filed opposition arguing that Jones' motion is procedurally improper.

Jones'

motion is procedurally improper. He seeks resolution of the bulk of the claims in his complaint, but does not move for summary judgment or under any other code section that would allow the Court to consider his motion on the merits. (See First Amended Complaint, p. 5.)

Jones'

Motion is DENIED.